

the Cathedrals Measure, 1931, providing for the allocation of the cathedral income, shall have been confirmed by His Majesty in Council, in manner following (that is to say) :—

- (i) as to such part thereof as the Chapter, with the approval of the Bishop of Manchester, may deem necessary in and for the repair and maintenance of the cathedral fabric; and
- (ii) as to the residue thereof for the general purposes of Manchester Cathedral (including the stipends of the Dean, the Canons and the other ministers and officers of Manchester Cathedral, but not the repair and maintenance of the cathedral fabric) in the same manner as if the same were being applied for those purposes under the Act of 1850 and the enactments varying or amending that Act.

Short title.

7. This Measure may be cited as the Parish of Manchester Revenues Measure, 1933.

No. 4.

A MEASURE passed by the National Assembly
of the Church of England.

To make further provision with regard to the administration of the property of vacant benefices and to confer certain powers upon sequestrators appointed under the Benefices (Ecclesiastical Duties) Measure, 1926.

[17th November 1933.]

Remuneration of occasional ecclesiastical duties performed in vacant benefices.

1.—(1) The bishop of every diocese shall in addition to the power conferred on him by section fourteen of the Benefices (Ecclesiastical Duties) Measure, 1926, of determining the amount of the stipend to be assigned to curates officiating in vacant benefices in his diocese have power also to determine the amount of the remuneration to be paid to clerks in Holy Orders who perform occasional ecclesiastical duties in such benefices.

(2) A determination by the bishop under this section shall be binding on and shall be given effect to by the sequestrators.

(3) The power conferred by this section shall authorise the bishop both to fix a general scale of remuneration to be applied in the absence of any special determination by him of the remuneration to be paid in a particular case and also to make such a special determination if, in his opinion, circumstances so require.

2.—(1) During a vacancy in a benefice the sequestrators may, subject to the provisions of this Measure, from time to time out of the income thereof which shall accrue during the vacancy, make provision for— Powers of sequestrators during vacancies.

- (i) the proper care and custody of the house of residence of the benefice;
 - (ii) the upkeep of any garden, kitchen garden, orchard or other land belonging to and occupied together with such house of residence;
 - (iii) the remuneration payable in respect of any professional assistance required by them in connection with their duties; and
 - (iv) the payment of interest upon moneys borrowed by them for any purpose for which provision has to be made by them under this Measure or otherwise.
- (2) The powers conferred by this section—
- (i) shall be exerciseable in any benefice only with the approval of the bishop of the diocese in which the benefice is situate, who may, at his discretion, either give a general approval of the said powers or some of them being exercised or sanction only particular items of expenditure; and
 - (ii) shall be exercised in such manner and to such extent as the bishop shall direct in any case where he shall think it desirable to give directions.

(3) The bishop of a diocese may delegate all the powers conferred on him by this section so far as they relate to the benefices within a particular archdeaconry to the archdeacon of that archdeaconry, and may revoke any such delegation.

(4) Subject to the rights of an outgoing incumbent, or the representatives of a deceased incumbent, the produce of any garden, kitchen garden, orchard, or other land belonging to and occupied together with the house of residence of a vacant benefice may be sold by the sequestrators, the proceeds of sale being treated as part of the income of the benefice.

Apportion-
ment of
income
during
vacancies.

3.—(1) In any case where any part of the income of a vacant benefice from whatever source derived is received from or paid through the Ecclesiastical Commissioners or Queen Anne's Bounty, the sequestrators may by a notice in writing addressed to the Ecclesiastical Commissioners or Queen Anne's Bounty, as the case may be, require that any moneys representing income which has accrued partly during the vacancy and partly during the succeeding incumbency shall be apportioned as between the period of the vacancy and that of the succeeding incumbency.

(2) Such notice may be given either during the vacancy or afterwards, but must be given at least seven days before the date on which any moneys, the apportionment of which is required, are payable by the Ecclesiastical Commissioners or Queen Anne's Bounty.

(3) The Ecclesiastical Commissioners or Queen Anne's Bounty shall, on receiving a notice complying with the provisions of this section, effect the apportionment thereby required, and shall pay the moneys apportioned to the period of the vacancy to the sequestrators, whose receipt, whether given in respect of a payment made during the vacancy or afterwards, shall be a valid discharge in respect of the said moneys.

Power of
sequestra-
tors under
the Bene-
fices (Eccle-
siastical
Duties) Mea-
sure, 1926,
to grant
tenancies of
houses of
residence.

4.—(1) In any case where a sequestration of the profits of a benefice has been issued under the provisions of the Benefices (Ecclesiastical Duties) Measure, 1926, the sequestrators shall, but subject to the rights of a curate appointed under the said Measure who is required by the bishop to reside in the house of residence of the benefice, have power with the sanction of the bishop to let such house of residence together with any garden or other land occupied therewith, or any part thereof respectively, for such term not exceeding five years, and at such rent and upon such terms and conditions as the bishop may approve.

(2) Any tenancy of a house of residence granted by sequestrators under this section shall contain a condition providing that at the expiration of a period of six weeks after the determination of the sequestration during which the tenancy was granted such tenancy shall determine.

(3) The net income derived from any tenancy created under this section shall be held and applied by the sequestrators as part of the profits of the benefice concerned.

5. The powers conferred on sequestrators by this Measure shall be in addition to the powers already vested in them under the existing law.

Existing
powers of
sequestra-
tors.

6. In this Measure the expression "sequestrators" shall mean the persons who shall for the time being be appointed for the sequestration of the income of a benefice, and for the purposes of the provisions of this Measure relating to the apportionment of income shall include the persons who were the sequestrators immediately before the filling of the vacancy.

Definition.

7. This Measure may be cited as the *Benefices (Sequestrations) Measure, 1933.*

Short title.

8. This Measure shall extend to the whole of the provinces of Canterbury and York except the Channel Islands and the Isle of Man.

Extent.